

**PLACER COUNTY SUPERIOR COURT**  
**THURSDAY, CIVIL LAW AND MOTION**  
**DEPARTMENT 3**  
**THE HONORABLE MICHAEL W. JONES**  
**TENTATIVE RULINGS FOR JUNE 4, 2026, AT 8:30 A.M.**

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burden—which he did not—defendant thereafter meets its burden to show, through the declaration of Joe Little and the exhibits attached thereto, the requested costs were incurred, reasonably necessary to the litigation, and reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c).)

Accordingly, plaintiff’s motion is denied in its entirety.

**7. S-CV-0052150 ZOLLER, KATHIE v. DONALD RYAN AND CAROLYN**

Defendants’ Motion for Summary Adjudication on the Second Cause of Action for Intentional Infliction of Emotional Distress and on the Claim for Punitive Damages

Appearances of the parties are required at the hearing.

**8. S-CV-0053126 HUSSAIN, SYED v. RAMIREZ, ISIDRO**

Plaintiff’s Motion for Leave to Amend Complaint to Allow Claim for Punitive Damages

Plaintiff moves for leave from the court to amend his complaint to include a prayer for punitive damages.

The court notes the motion is procedurally deficient because it does not comply with California Rules of Court, Rule 3.1324, subdivision (a) by identifying what allegations are to be deleted and what allegations are to be added. This is especially problematic here because plaintiff moves to add a prayer for punitive damages yet the proposed second amended complaint is 3 pages longer than the operative first amended complaint. The court nonetheless addresses the merits of plaintiff’s motion.

Punitive damages are available “where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Malice is “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.* at § 3294, subd. (c)(1).) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.* at § 3294, subd. (c)(2).)